

A. *has no duty to perform* (i); or where a trustee sells to the trustees of his own settlement and under which he has partial interest (j).

2. **Lord Rosslyn's doctrine.**—Lord Rosslyn is reported to have considered that to invalidate a purchase by a trustee it was necessary to show that he had gained an *actual advantage* (k); but the doctrine (if any such was ever held by his Lordship (l) has since been expressly and unequivocally denied (m). The rule is now universal, that, *however fair the transaction*, the *cestui que trust* is at liberty to set aside the sale and take back the property (n). If a trustee [*486] were *permitted to buy in an *honest* case, he might buy in a case *having that appearance, but which, from the infirmity of human testimony, might be grossly otherwise* (a). Thus a trustee for the sale of an estate may, by the knowledge acquired by him in that character, have discovered a valuable coal mine under it, and, locking that up in his own breast, might enter into a contract for the purchase by himself. In such a case, if the trustee chose to deny it, how could the Court establish the fact against the denial? The probability is that the trustee who had once conceived such a purpose would never disclose it, and the *cestui que trust* would be effectually defrauded (b).

3. **Trustee may not buy as agent.**—As a trustee cannot buy on his own account it follows that he cannot be permitted to buy as *agent* for a third person: the Court can

(i) *Pooley v. Quilter*, 4 Drew. 189; and see *Denton v. Donner*, 23 Beav. 289, 290.

(j) *Hickley v. Hickley*, 2 Ch. D. 190.

(k) See *Whichcote v. Lawrence*, 3 Ves. 750.

(l) See *Ex parte Lacey*, 6 Ves. 626; *Lister v. Lister*, Id. 632.

(m) *Ex parte Bennett*, 10 Ves. 385; *Ex parte Lacey*, 6 Ves. 627; *Attorney-General v. Lord Dudley*, G. Coop. 148; *Ex parte James*, 8 Ves. 348; *Mulvany v. Dillon*, 1 B. & B. 409, see 418.

(n) *Ex parte Lacey*, 6 Ves. 625, see 627; *Owen v. Foulkes*, cited, Id. 630, note (b); *Ex parte Bennett*, 10 Ves.

393, *per Lord Eldon*; *Randall v. Errington*, 10 Ves. 423, see 428; *Campbell v. Walker*, 5 Ves. 678, see 680; *Ex parte James*, 8 Ves. 347, 348, *per Lord Eldon*; *Lister v. Lister*, 6 Ves. 631; *Gibson v. Jeyes*, 6 Ves. 277, *per Lord Eldon*; see *Kilbee v. Sneyd*, 2 Moll. 186.

(a) *Ex parte Bennett*, 10 Ves. 385, *per Lord Eldon*.

(b) *Ex parte Lacey*, 6 Ves. 627, *per Lord Eldon*; and see *Ex parte Bennett*, 10 Ves. 385, 394, 400; *Ex parte James*, 8 Ves. 348, 349; *Parkes v. White*, 11 Ves. 226; *Campbell v. Walker*, 5 Ves. 681; *Lister v. Lister*, 6 Ves. 632; *Ex parte Badcock*, 1 Mont. & Mac. 239.